

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1307

By: Humphrey

AS INTRODUCED

An Act relating to crimes and punishments; amending  
21 O.S. 2021, Section 701.9, which relates to  
penalties for murder; establishing penalty for  
certain persons convicted of murder in the first  
degree; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 701.9, is  
amended to read as follows:

Section 701.9. A. 1. A person who is convicted of or pleads  
guilty or nolo contendere to murder in the first degree shall be  
punished by death, by imprisonment for life without parole or by  
imprisonment for life. A person who is convicted of or pleads  
guilty or nolo contendere to murder in the first degree, as  
described in subsection E of Section 701.7 of this title, shall be  
punished by death or by life without parole and absent an  
overwhelming amount of mitigating evidence shall not be entitled to  
or afforded the benefit of receiving imprisonment for life or  
deferment of the sentence.

1        2. A foreign-born person who, at the time of committing murder  
2 in the first degree, was present in the United States without valid  
3 immigration documentation or violated the terms of his or her  
4 admission to the United States, is convicted of or pleads guilty or  
5 nolo contendere to murder in the first degree shall be punished by  
6 death.

7        B. A person who is convicted of or pleads guilty or nolo  
8 contendere to murder in the second degree shall be guilty of a  
9 felony punishable by imprisonment in the custody of the Department  
10 of Corrections for not less than ten (10) years nor more than life.

11        SECTION 2. This act shall become effective November 1, 2025.

12  
13        60-1-10079        GRS        01/04/25  
14  
15  
16  
17  
18  
19  
20  
21  
22  
23  
24